

Special Notice

SUBJECT* Neuwave Service | Base | Start: 7/1/25 Intent to Sole Source

GENERAL INFORMATION

CONTRACTING OFFICE'S ZIP CODE*	45219
SOLICITATION NUMBER*	36C25025Q0562
RESPONSE DATE/TIME/ZONE	05-16-2025 08:00 EASTERN TIME, NEW YORK, USA
ARCHIVE	30 DAYS AFTER THE RESPONSE DATE
RECOVERY ACT FUNDS	N
PRODUCT SERVICE CODE*	J065
NAICS CODE*	811210
CONTRACTING OFFICE ADDRESS	Department of Veterans Affairs Network Contracting Office (NCO) 10 260 E. University Avenue Cincinnati OH 45219
POINT OF CONTACT*	Contracting Officer Christopher T. Council Christopher.Council@va.gov 216-447-8300

ADDITIONAL INFORMATION

AGENCY'S URL	
URL DESCRIPTION	
AGENCY CONTACT'S EMAIL ADDRESS	https://www.va.gov
EMAIL DESCRIPTION	VA homepage

*= Required Field

Special Notice

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DESCRIPTION

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The Department of Veteran Affairs, Veterans Health Administration, Network Contracting Office 10, Cincinnati OH 45219, intends to negotiate a sole source, Firm-Fixed Price Contract for a Neuwave Service Agreement to Johnson & Johnson, 3529 Anderson Street Madison, WI 53704 in accordance with FAR Subpart 13.2. This acquisition is for the Dayton VA, 4100 W. Third Street, Dayton, OH 45428.

The Government intends to award the contract to Johnson & Johnson, 3529 Anderson Street Madison, WI 53704. UEI: TVJCF48T79L9.

This notice satisfies the requirement at FAR 5.201(b)(1), requiring publication of the proposed contract action. This notice of intent is not a request for quote and no solicitation shall be made available. IAW FAR 5.207(c)(16)(ii) Contractors may submit a capabilities statement or quotation which shall be considered by the agency. The government shall not pay for any costs incurred by responses to this notice.

Responses to this notice are due on or before Monday, May 19th at 08:00 a.m. Eastern Time to Christopher Council, Contracting Officer, via email at Christopher.Council@va.gov.

Special Notice

VHAPG Part 813.106 Simplified Acquisition Procedures: Soliciting from a Single Source
Attachment 1: Single Source Justification for SAP under the SAT

DEPARTMENT OF VETERANS AFFAIRS

Justification for Single Source Awards IAW [FAR 13.106-1](#) For Over Micro-Purchase Threshold but Not Exceeding the SAT (\$250K)

Acquisition Plan Action ID: [36C250-25-AP-3806](#)

1. **Contracting Activity:** Department of Veterans Affairs, VISN 10, Dayton VA Medical Center. Network Contracting Office (NCO) 10, 260 East University Avenue, Cincinnati OH 45219. Purchase Request #: 552-25-4-695-0084.

2. **Brief Description of Supplies/ Services required and the intended use/Estimated Amount:**

Estimated Contract Value: \$19,828.00

The contractor shall provide all necessary labor, management, supervision, technical skills, quality control, materials, tools, transportation, software, and equipment necessary to provide a service agreement, preventative maintenance, and repair service for the Neuwave System. This equipment must be serviced and/or repaired with the use of OEM parts, tools, and materials. The contractor must have direct access to OEM parts to ensure timely repair services and delivery.

3. **Unique characteristics that limit availability to only one source, with the reason no other supplies or services can be used:**

Johnson & Johnson is the sole source for service on this equipment because of the proprietary nature of the system. Johnson & Johnson retains sole data rights on equipment. This is highly specialized hospital equipment. No third-party repair is authorized, and VetCert search resulted in no SDVOSBs or VOSBs capable of performing the work due to the proprietary data rights of the OEM. The Neuwave System from Johnson & Johnson cannot be repaired by third party vendor.

4. **Description of market research conducted and results or statement why it was not conducted:**

Market Research was conducted on Sam.gov, Federal Supply Schedules (GSA), NAC, and SAC. Not found to be on any of these schedules. VetCert query was conducted using NAICS code 811210 and returned 320 SD/VOSB concerns. A DSBS query using NAICS 811210 and Keywords "Neuwave" returned zero SB concerns. Johnson & Johnson is the OEM of the systems and has proprietary rights to the equipment. Johnson & Johnson does not authorize third parties to work on their equipment. The VA/SBA Rule of Two cannot be met. Recommend award to Johnson & Johnson, a Large Business.

5. **Contracting Officer's Certification:** *Purchase is approved in accordance with FAR13.106-1(b). I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief. See the [S19 Open Market \(FAR13\) Award Documentation Form with Abstract](#) to document price reasonableness.*

Revision: 01

Effective Date: 11/15/2024

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Acquisition ID#: 36C250-25-AP-3806

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Attachment 1: Single Source Justification for SAP under the SAT

CHRISTOPHER
COUNCIL

Name: Christopher T. Council
Title: Contract Officer, Services

Digitally signed by
CHRISTOPHER COUNCIL
Date: 2025.05.08 13:41:37
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